

Writ against provisional s.126 bill dismissed; vires of s.126 and cl.8.1/6.8 rejected

High Court of Judicature at Allahabad · Division Bench · 7 January 2016 · Writ-C No. 26048 of 2010 · Writ-C No. 26048 of 2010 · **Writ dismissed; consumer relegated to objections against provisional assessment.**

HEADNOTE

A writ challenging a provisional assessment bill issued on a checking report, and seeking to strike down s.126 of the Electricity Act, 2003 and clauses 8.1 and 6.8 of the Electricity Supply Code, 2005 as ultra vires Article 14, is not to be entertained where the consumer has been called upon to file objections to the report and to the quantum of charges. The vires challenge failed for want of any sustainable submission. Interim order discharged.

FACTUAL SUMMARY

M/s Bhawani Shanker Cement Pvt. Ltd., an industrial consumer at Jaunpur, was checked by Purvanchal Vidyut Vitran Nigam Ltd. A provisional assessment bill issued on the checking report called for objections to the report and the quantum of charges. Instead of objecting, the company filed a writ to quash the bill and to declare s.126 of the Electricity Act, 2003 and clauses 8.1 and 6.8 of the Electricity Supply Code, 2005 ultra vires Article 14, on the ground that hearing and assessment must be by the same Assessing Officer.

HOLDING-UNITS

INTERPLAY · EA2003::126

provisional assessment — writ and vires

HOLDING

A writ petition challenging a provisional assessment bill founded on a checking report, and the vires of s.126 of the Electricity Act, 2003 and clauses 8.1 and 6.8 of the Electricity Supply Code, 2005 vis-à-vis Article 14, is not to be entertained where the consumer has been noticed to file objections to the report and to the quantum of charges. The consumer must respond to that notice and pursue objections as advised and permissible in law. The vires challenge to s.126 and clauses 8.1 and 6.8 fails for want of any sustainable submission. ¶ 1

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion A writ challenging a provisional assessment bill issued on a checking report, and seeking to strike down s.126 of the Electricity Act, 2003 and clauses 8.1 and 6.8 of the Electricity Supply Code, 2005 as ultra vires Article 14 ¶ 1

s126-procedural-strictness-notice-and-hearing A writ challenging a provisional assessment bill issued on a checking report, and seeking to strike down s.126 of the Electricity Act, 2003 and clauses 8.1 and 6.8 of the Electricity Supply Code, 2005 as ultra vires Article 14 ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHECKING REPORT AND THE QUANTUM OF THE PROVISIONAL ASSESSMENT

Left to objections in response to the notice. ¶ 1

